

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOSHUA SHERMAN,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER THOMAS COSTARELLA, Shield No.
27224 and SERGEANT MICHAEL SZCZECINSKI,

Index No.:

Defendants.

The Basis of Venue is:
Location of Incident

Plaintiff designates KINGS
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 6, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER THOMAS COSTARELLA, Shield No. 27224, 61st Precinct, 2575
Coney Island Ave, Brooklyn, NY 11223
SERGEANT MICHAEL SZCZECINSKI, 61st Precinct, 2575 Coney Island Ave,
Brooklyn, NY 11223

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOSHUA SHERMAN,

Plaintiff,

-against-

POLICE OFFICER THOMAS COSTARELLA, Shield No.
27224 and SERGEANT MICHAEL SZCZECINSKI,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff JOSHUA SHERMAN, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On September 24, 2016, at approximately 1:00 p.m., plaintiff Joshua Sherman, while lawfully in the vicinity of East 18th Street and Kings Highway, Brooklyn, New York, was subject to an unlawful stop, question, frisk, use of excessive force, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was subsequently and denied the right to due process and a fair trial. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, used excessive force, confined, falsely arrested, falsely imprisoned, and denied plaintiff the right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff JOSHUA SHERMAN is a resident of the state of New York.

3. POLICE OFFICER THOMAS COSTARELLA, Shield No. 27224, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER THOMAS COSTARELLA, Shield No. 27224, is and was at all times relevant herein, assigned to the 61st Precinct

5. POLICE OFFICER THOMAS COSTARELLA, Shield No. 27224, is being sued in his individual and official capacity.

6. SERGEANT MICHAEL SZCZECINSKI is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT MICHAEL SZCZECINSKI is and was at all times relevant herein, assigned to the 61st Precinct

8. SERGEANT MICHAEL SZCZECINSKI is being sued in his individual and official capacity.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On September 24, 2016, at approximately 1:00 p.m. plaintiff was lawfully present in the vicinity of E. 18th Street and Kings Highway, Brooklyn, when the defendant police officers unlawfully stopped, questioned, frisked, and searched plaintiff without reasonable suspicion or probable cause.

14. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit, or was committing a crime.

15. By way of background, on September 24, 2016 at approximately 12:30 p.m., an unknown individual assaulted plaintiff.

16. A civilian witness to the incident unknown to plaintiff called 911 to report the assault of plaintiff.

17. A few minutes later, the defendant police officers responded to the scene.

18. The defendant police officers advised plaintiff that he should go to the hospital, however plaintiff did not want to go to the hospital at that time.

19. Suddenly, without provocation or legal justification, the defendant police officers grabbed plaintiff's arm, slammed plaintiff to the ground, and slammed plaintiff's head into the ground causing plaintiff to suffer pain and physical injuries.

20. At no point relevant herein did plaintiff resist arrest in any way.

21. Nevertheless, plaintiff was unlawfully handcuffed and unlawfully arrested by the defendant police officers without legal justification or probable cause.

22. Plaintiff was transported by the defendant police officers to the 61st Precinct against his will, where he was photographed, searched, fingerprinted and then placed in a holding cell by the defendants.

23. At the precinct, plaintiff continued to suffer severe pain due to the excessive force used by the officers during the course of arresting plaintiff and requested medical attention.

24. EMS responded to the 61st Precinct and determined that plaintiff's injuries required medical treatment at the hospital.

25. Plaintiff was then transported to Coney Island Hospital, where plaintiff was handcuffed to the gurney for several hours.

26. At Coney Island Hospital, plaintiff underwent CT scans of his head and body and was prescribed pain medication for his injuries.

27. Plaintiff was then transported back to the 61st Precinct and placed in a holding cell.

28. On September 24, 2016, plaintiff was transported from the 61st Precinct to Brooklyn Central Booking.

29. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

30. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

31. On September 25, 2016, at approximately 1:00 p.m., after being unlawfully detained for approximately 24 hours, plaintiff was arraigned and was released on his own recognizance.

32. Plaintiff was unlawfully charged with PL Section 240.20(1) - Disorderly Conduct, PL Section 195.05 - Obstruction of Governmental Administration in the Second Degree, PL Section 240.26(1) - Harassment in the Second Degree, and PL Section - 240.26(1) - Resisting Arrest.

33. Thereafter, plaintiff was forced to appear in court for on approximately two additional occasions until all charges were dismissed and sealed in their entirety on December 30, 2016.

34. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest and imprisonment, denial of the right to a fair trial and use of excessive force against plaintiff.

35. The unlawful stop, question, frisk, search, seizure, false arrest and imprisonment, use of excessive force, and denial of plaintiff's right to a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

37. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

38. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

41. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

47. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search plaintiff.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. The use of excessive force by defendants by, amongst other things, by slamming plaintiff to the ground and pushing their knees into his head and back, constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

61. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein

63. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

64. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the District Attorney's Office.

65. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the District Attorney's Office.

66. In withholding/creating false evidence against plaintiff Joshua Sherman, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

67. As a result of the foregoing, plaintiff Joshua Sherman, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 114 with the same force and effect as if more fully set forth at length herein.

72. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

73. Defendants failed to intervene to prevent the unlawful conduct described herein.

74. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

75. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

79. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Joshua Sherman demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 6, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER THOMAS COSTARELLA, Shield No. 27224, 61st Precinct, 2575
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Brooklyn, NY 11223

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 6, 2019

_____/s/
STUART E. JACOBS